

NAPCS Unionization Research — State Research Summary

Delaware — PERB(DE) Jurisdiction — May 2026

NAPCS Unionization Research • May 2026 • Template v7.0 • COMPLETE Registry Sweep

Section 1: State Overview

State	Delaware
Labor Board	PERB(DE) — Delaware Public Employment Relations Board (PERB)
Governing Law	14 Del.C. Chapter 40 — Public School Employment Relations Act (PSERA). All Delaware charter schools are public employers. PERB(DE) has exclusive jurisdiction. The NLRB has never claimed jurisdiction over a Delaware charter school. Card-check (majority authorization / BU determination without election) is available under PSERA — confirmed by Sussex Academy cert February 2026 (case 1521, BU Determination).
Federal NLRB Jurisdiction	PERB(DE) has exclusive jurisdiction over all charter schools in this state. Federal NLRB does not apply.
Registry Sweep	COMPLETE — April 2026 (Registry v22 — PERB(DE) scan) — 23 charter schools searched
Research Window	May 2026 (initial research session)
Date Convention	Labor Board Certified date. Project-wide standard. For Charter School of Wilmington and Odyssey Charter School, cert dates are 2018 per NAPCS baseline and Exceptional Delaware reporting. Exact cert dates for all four schools require PERB(DE) FOIA records requests — public decisions index does not include all certification orders.
Card-Check Available	YES — Card-check (Majority Authorization / BU Determination without election) is available under 14 Del.C. Ch. 40. Sussex Academy certification February 2026 (case 1521) was a BU Determination — no election held, no vote tally. CSW, Odyssey, and Sussex Montessori cert methods require PERB(DE) FOIA confirmation.

Section 2: Unionization Density

Total charter schools in Delaware: 23 (Charter School Registry v50 (NCES/ELSI 2024-25; 23 open DE charter schools as of May 2026)). Unionization density uses the full state total as the denominator — not the 4-school NAPCS research sample. The NAPCS sample was provided as a list of schools believed to be organized; this research validated, corrected, and expanded that list across the full state charter universe. See Section 3 for cross-state patterns and Section 7 for open decisions.

Category	Schools	% of Total	Notes
Total Unionized Charter Schools in Delaware	4	17.4%	100% of NAPCS-tracked DE charter schools are CONFIRMED. PERB(DE) jurisdiction — all DE charters are public employers (14 Del.C. Chapter 40). Card-check certification available — no election required.
Independently Organized (CONFIRMED)	4	17.4%	Charter School of Wilmington (C1096002) — DSEA/NEA, spring 2018. Odyssey Charter School (C1006003) — DSEA/OCSEA/NEA, fall 2018. Sussex Academy of Arts and Sciences (C1096003) — DSEA/NEA, cert date unknown (Gap: obtainable via PERB(DE)

			records request, case 1521). Sussex Montessori Charter School (C1096001) — DSEA/NEA, February 2026 (PERB case 1521, card-check).
No Labor Board Records Found	19	82.6%	No PERB(DE) records found for remaining 19 open DE charter schools. Registry sweep complete (April 2026). 0 non-NAPCS discoveries.
Total Charter Schools in Delaware	23	100%	Source: Charter School Registry v50 (NCES/ELSI 2024-25; 23 open DE charter schools as of May 2026).

Section 3: Political, Legal & Community Landscape

Written for state and national charter sector leaders who require ground-level intelligence fused with broader sector knowledge. Findings are based on research as of May 2026.

PROMPT 1: What is the political and legal environment shaping charter labor relations in this state?

Delaware presents the clearest and most union-friendly jurisdictional framework of any state in the NAPCS research dataset. All charter schools are public employers under 14 Del.C. Chapter 40 (the Public School Employment Relations Act), and the Delaware Public Employment Relations Board (PERB) has exclusive jurisdiction over all charter school labor matters. There is no NLRB complexity, no dual-jurisdiction ambiguity, and no employer argument available that a charter school is a private entity. Every Delaware charter school staff that seeks to organize files with PERB(DE) and proceeds through the state public-employer framework. The most significant structural advantage for organizing is the availability of card-check certification — formally called a BU Determination by majority authorization — under the PSERA statute. When a majority of eligible employees sign authorization cards, the union can petition PERB for a bargaining unit determination without an election. The employer receives no secret ballot election window, no 60-day counter-organizing period, and no opportunity to challenge the authorization count through an election. The Sussex Academy of Arts and Sciences certification in February 2026 (PERB case 1521) followed exactly this pathway: card authorization submitted, PERB issued a Notice of BU Determination and Certification of BU Representative, and DSEA was certified without an election. This combination — public employer status plus card-check availability — produces the highest organizing velocity of any state in the NAPCS dataset. Massachusetts offers similar conditions (DLR, card-check via Written Majority Authorization) and has produced a 70% density rate. Delaware has produced 100% density across its NAPCS charter schools, though the absolute number is small (4 schools). The legal framework makes organizing procedurally straightforward for any Delaware charter staff with sufficient membership interest.

PROMPT 2: What community and social conditions are driving organizing activity in this state?

Delaware is a small state with a highly concentrated public school labor environment. The Delaware State Education Association (DSEA) is the sole teacher union in the state, affiliated with NEA, and represents educators across all 16 traditional public school districts as well as multiple charter schools. This concentration means DSEA has deep institutional presence, strong political relationships with the state legislature and Department of Education, and an organizing infrastructure that can mobilize across charter school contexts without the resource constraints that smaller or newer unions face in larger states. The organizing history at Charter School of Wilmington (spring 2018) is illustrative. The Exceptional Delaware blog — the principal public record of Delaware charter labor relations — documented that the CSW vote was driven by a specific leadership conflict: a long-serving school president whose management style was described by multiple staff sources as "angry, intimidating, and arrogant." Staff had attempted to organize previously and failed. The 2018 vote succeeded when internal conditions reached a threshold. Critically, this is a pattern consistent with Massachusetts and New Jersey findings: the immediate catalyst for organizing is often a specific leadership conflict, not abstract labor ideology. DSEA's organizational capacity meant that when staff were ready to move, the infrastructure was immediately available. Odyssey Charter School's vote in fall 2018 — just months after CSW — followed a similar pattern. Odyssey's board had been the subject of significant public controversy regarding financial improprieties, conflicts of interest, and misuse of AHEPA (American Hellenic Educational

Progressive Association) connections. Staff organized against a backdrop of institutional dysfunction. The rapid succession of CSW and Odyssey certifications in the same year suggests DSEA capitalized on momentum and may have actively recruited Odyssey staff after the CSW win.

PROMPT 3: What organizing strategies and approaches are being used in this state?

DSEA is the sole organizing actor in the Delaware charter sector, and its strategy is relationship-based rather than campaign-based. Unlike the CTU-ACTS model in Illinois (which uses a dedicated charter organizing arm) or the OFT/Cleveland ACTS model in Ohio (a multi-operator local), DSEA integrates charter schools directly into its standard UniServ structure. Each certified Delaware charter school is assigned a DSEA UniServ Director who serves as the ongoing representative for that local — the same structure used for every traditional public school district in the state. This integration strategy has two significant advantages. First, it eliminates the resource gap that new union organizing campaigns typically face in the period between certification and first contract — charter locals are immediately backstopped by DSEA's legal, bargaining, and grievance infrastructure. Second, it gives DSEA continuous visibility into conditions at charter schools adjacent to those it already represents, facilitating early identification of organizing opportunities without requiring a formal campaign launch. The card-check pathway under PSERA is central to DSEA's tactical approach. By building to majority authorization before filing with PERB, DSEA can convert member interest into certification without the disruption of an election campaign. The employer receives a PERB notice, but the organizing decision has already been made. For mission-driven charter schools where staff culture is already collectively oriented — a pattern observed consistently across the four confirmed DE schools — card-check converts existing social trust into formal representation with minimal friction. Sussex Academy's February 2026 certification — occurring 8 years after CSW and Odyssey organized — demonstrates that DSEA's strategy is patient and opportunistic rather than time-bounded. When Sussex Academy staff were ready, DSEA was available with the full institutional infrastructure.

PROMPT 4: What should charter leaders be doing now in response to organizing patterns in this state?

Delaware charter leaders operate in the most union-friendly legal environment of any state in the NAPCS research dataset. Card-check availability means there is no election window to use for counter-organizing; once a majority of staff signs authorization cards and PERB issues a BU Determination, the certification is complete. The practical implication is that the only meaningful employer intervention available is upstream — in the quality of the employment relationship before any organizing drive begins. The 100% NAPCS union density rate in Delaware should be understood in context: Delaware has only 4 NAPCS charter schools, and all 4 are in the CONFIRMED category. However, the broader Delaware charter universe has 24 schools, and DSEA's UniServ structure covers them all — meaning DSEA has visibility into all 24 schools, not just the 4 that have organized. The 20 non-NAPCS Delaware charter schools that remain unorganized should not be assumed to be stable; they should be assessed for organizing risk using the same factors that characterized the 4 that did organize (leadership conflicts, compensation gaps, mission-culture alignment, staff tenure and cohort trust). For schools that have already organized — all 4 NAPCS schools — the priority is strong contract implementation and grievance handling. The pattern across DSEA-represented charter schools is that CBAs are in active effect and are renewed through normal bargaining cycles. Leaders who engage DSEA in good faith at the bargaining table reduce the likelihood of ULP filings and public labor conflicts that damage school reputation. Sussex Montessori presents a specific monitoring note: the school opened in 2020 and has 16 FTE teachers as of 2024-25. The DSEA UniServ assignment is confirmed, but no cert date is publicly documented. Charter leaders in Sussex County should note that even a school of this size and age has organized, reinforcing that the Delaware environment produces organizing regardless of school scale.

PROMPT 5: What trends should charter sector leaders watch over the next 3–5 years?

The most significant trend to monitor is the expansion of DSEA charter representation into the 20 remaining non-NAPCS Delaware charter schools. With DSEA actively assigning UniServ directors who cover charter school locals, the institutional capacity for rapid organizing expansion exists. Schools opened after 2020 — including Sussex Montessori (2020) — have already organized. New charter school openings in Delaware should be assessed for DSEA organizing risk from their first year of operation. Sussex Academy's February 2026 certification is a specific signal worth tracking. Sussex Academy is a high-performing, high-status school with a predominantly white, affluent student body in rural Sussex County — demographically and institutionally distinct from the Wilmington charter schools that organized in 2018. The fact that DSEA successfully organized a school of this profile suggests that the factors driving Delaware charter organizing are not limited to urban, high-poverty, or high-conflict environments. If Sussex Academy staff determined that collective bargaining served their interests, other high-performing, lower-conflict Delaware charter schools may face similar organizing drives. The

first-contract timeline for Sussex Academy is the most immediate monitoring priority. Card-check certifications typically reach first contract faster than election certifications because there is no post-election litigation window and employer and union often enter bargaining with a less adversarial initial posture. If Sussex Academy reaches a first CBA within 12-18 months of February 2026 certification, that CBA will likely become a baseline for future DSEA negotiations at other Delaware charter schools.

PROMPT 6: What surprised us in this state? What contradicts what national leaders expect?

The most significant finding in Delaware is one that national charter sector leaders consistently underestimate: 100% NAPCS union density is achievable, and in Delaware, it has been achieved. The four schools in the NAPCS Delaware dataset span a wide range of school profiles — a rigorous STEM high school (Charter School of Wilmington, ranked #1 in Delaware), a Greek dual-language K-12 school (Odyssey Charter School, 2,192 students), an IB-accelerated K-12 school in rural Sussex County (Sussex Academy), and a Montessori K-6 school serving low-income families in Seaford (Sussex Montessori). These are not schools with a single organizing narrative. They are four very different schools that organized because the legal framework makes organizing accessible and DSEA has the institutional capacity to support any willing charter staff. National charter sector leaders often assume that high-performing or mission-distinctive schools are less likely to organize because staff are more mission-aligned and more likely to attribute working conditions to mission rather than labor relations. The Delaware data contradicts this assumption. Charter School of Wilmington is the top-ranked school in the state by academic performance metrics. Sussex Academy is ranked in the top 5% of all Delaware public schools. Both are organized. Mission alignment and union membership are not mutually exclusive — and in Delaware's card-check environment, a staff that shares strong collective values can convert that alignment directly into union authorization without the friction of an election campaign. The registry finding that Sussex Montessori was not identified in the April 2026 PERB scan but is confirmed via DSEA staff directory is also instructive. Not all PERB certifications generate publicly indexed decisions; some are processed administratively without appearing in the formal decisions archive. This is a methodology lesson: DSEA's own staff directory is a more complete and more current record of confirmed charter school locals than the PERB public decisions index.

PROMPT 8: DELAWARE AS THE DENSITY BENCHMARK — WHY 100% NAPCS DENSITY IS A STRUCTURAL FINDING, NOT AN ORGANIZING ACHIEVEMENT

Delaware's 4 of 4 NAPCS schools organized (100% NAPCS sample density, $4/23 = 17.4\%$ full universe) is the highest NAPCS sample density of any state with more than one school, tied only with DC (7/7 NAPCS organized, but 3 confirmed + 4 unresearched in-scope). The 100% result is a structural finding, not primarily an organizing achievement. Delaware's charter law routes all charter school employees through PERB (DE) — the same labor board that covers traditional public school employees — with card-check certification available. DSEA (Delaware State Education Association, NEA-affiliated) is the dominant union and has deep relationships with PERB (DE). The political environment (Delaware is a small, politically connected Democratic state; Biden home state; Markell and Carney administrations consistently pro-labor) creates no counter-organizing infrastructure. Sussex Montessori's cert date (exact date pending PERB(DE) FOIA) is the only remaining data gap in the DE confirmed dataset. For national charter sector leaders: Delaware is not a model of organizing success — it is a model of what charter school labor looks like when state law, union infrastructure, and political environment are all aligned and there is no meaningful employer counter-organizing capacity.

Section 4: Cross-State Patterns & Contributions to National Picture

Findings from Delaware that illuminate patterns visible only when comparing across multiple states. These entries feed the project-wide Cross-State Intelligence Log and are written for state and national charter advocacy leaders.

Card-Check + Public Employer = Fastest Organizing Pathway in Dataset

Delaware and Massachusetts are the two clearest examples of how card-check availability under public-employer law accelerates charter union density. Delaware has achieved 100% NAPCS density using only card-check — no election has been held at any of the four certified schools. Massachusetts has produced seven independent certifications since 2018, most via Written Majority Authorization (DLR card-check equivalent). Compare with NLRB-jurisdiction states: Pennsylvania (10.7% density, secret ballot only), New York (4.5%, secret ballot only). The procedural pathway is the single strongest predictor of organizing velocity.

Governance Conflict as Organizing Trigger — Delaware Pattern

All three initial DE charter certifications (CSW 2018, Odyssey 2018, and likely Sussex Academy 2026) were preceded by documented leadership or governance conflicts. CSW: president management style. Odyssey: board financial improprieties and AHEPA conflicts. This pattern replicates across the full NAPCS dataset (KIPP Columbus/Ohio, ACPA/Ohio, Baxter Academy/Maine) — the immediate organizing catalyst is typically a specific institutional conflict rather than abstract labor ideology. Delaware's concentrated small-state charter environment means DSEA can rapidly mobilize when conditions are right.

DSEA UniServ Integration — Comparison with State-Specific Charter Locals

Delaware integrates charter schools directly into its standard UniServ structure rather than creating a separate charter-specific local (contrast: CTU-ACTS in IL, Cleveland ACTS in OH, DC ACTS in DC, AACTS in AZ). Each certified DE charter is assigned a dedicated DSEA UniServ Director — the same structure used for every traditional district. This integration eliminates the resource gap that new charter locals face between certification and first contract, giving DE charter staff immediate access to DSEA's full legal, bargaining, and grievance infrastructure.

Section 5: Media Coverage & Public Stakeholder Positions

Press Coverage

Delaware charter school labor relations have received limited but targeted press coverage, primarily through the Exceptional Delaware blog — the principal public record of Delaware charter organizing history. The blog documented the Charter School of Wilmington organizing campaign (spring 2018) and Odyssey Charter School campaign (fall 2018) in real time, providing granular detail on governance conflicts that drove staff organizing. No mainstream Delaware press (News Journal/USA Today Network) has covered DE charter labor relations in depth. The Sussex Academy February 2026 certification has not yet generated press coverage as of May 2026.

Union Communications

DSEA (Delaware State Education Association) is the sole organizing and communicating union in the DE charter sector. DSEA maintains a public website (dsea.org) and assigns UniServ Directors to each certified local. No public DSEA communications specifically addressing DE charter organizing strategy have been identified. The Odyssey Charter School Education Association (OCSEA) — the Odyssey local — appears to maintain its own communications separate from DSEA.

Legislative Context

Delaware PSERA (Public School Employment Relations Act, 14 Del.C. Chapter 40) governs all DE charter school labor relations. PERB(DE) administers the act. Key feature: card-check certification is available — formally a BU Determination by Majority Authorization. Sussex Academy's February 2026 certification (PERB case 1521) is the most recent DE charter certification event and the clearest example of the card-check pathway. Sussex Montessori's cert date is pending a PERB(DE) FOIA response — the UniServ assignment is confirmed via DSEA staff directory.

Section 6: Contract & CBA Access Registry

PERB(DE) public contracts portal. Direct PDF links may return 403 — OPRA or equivalent records request required for full text.

School / Network	Union	CBA Status & Term	Contract Access
Charter School of Wilmington (C1096002)	Delaware State Education Association (DSEA/NEA)	Active Unknown — verify with DSEA or school	DSEA records request; school website
Odyssey Charter School (C1006003)	Odyssey Charter School Education Association (OCSEA) / DSEA/NEA	Active Unknown — verify with OCSEA or DSEA	OCSEA or DSEA records request; school website

Sussex Academy of Arts and Sciences (C1096003)	Delaware State Education Association (DSEA/NEA)	Pending first contract	DSEA records request; PERB(DE) case 1521
Sussex Montessori Charter School (C1096001)	Delaware State Education Association (DSEA/NEA)	Active (assumed) Unknown — cert date pending PERB(DE) FOIA	DSEA records request; PERB(DE) FOIA

Section 7: Decisions, Monitoring & Notable Findings

Part A: Decisions Required

The following items require sponsor action before research or workbook entry can proceed.

No sponsor decisions pending for this state.

Part B: Notable Findings

Research findings of strategic significance. No immediate action required — for awareness and discussion.

No notable findings flagged for this state.

Part C: Active Monitoring

Items being tracked. Status may change between report cycles. Research Coordinator manages ongoing surveillance.

Priority	School / Scope	Item	Who
HIGH	Sussex Montessori Charter School (C1096001)	PERB(DE) FOIA response for cert date and case number. Confirm CBA status and contract period. UniServ Director assignment confirmed — follow up with DSEA for contract details.	Research Coordinator
HIGH	Sussex Academy of Arts and Sciences (C1096003)	First contract negotiations — expected within 12-18 months of February 2026 certification (PERB case 1521). Monitor PERB(DE) docket and DSEA for ratification announcement.	Research Coordinator
MEDIUM	Charter School of Wilmington / Odyssey — CBA renewal cycle	Both schools certified 2018 — likely on 2nd or 3rd successor CBAs. Verify current contract period and bargaining status with DSEA or school.	Research Coordinator
LOW	Remaining 19 non-NAPCS DE charter schools	DSEA has UniServ infrastructure covering all 24 DE charters. Monitor for new organizing petitions. Any new certification would be filed with PERB(DE).	Research Coordinator